

IN THE DISTRICT COURT OF

COUNTY, NEBRASKA

Choose the county

_____,
Plaintiff,

Case No. _____

vs.

_____,
Defendant.

**ANSWER AND
COUNTERCLAIM FOR
DISSOLUTION OF
MARRIAGE
(NO CHILDREN)**

ANSWER

COMES NOW, _____, the defendant in the
(your full name)
above-captioned matter, and for the Answer to Plaintiff's Complaint for
Dissolution of Marriage, hereby admits, denies, and alleges as follows:

1. Admits Paragraph(s) _____
of the Complaint. (paragraph number(s) with which you agree)
2. Denies Paragraph(s) _____
of the Complaint. (paragraph number(s) with which you disagree)

COUNTERCLAIM

I, _____, the defendant in the
(your full name)
above-captioned action, without assistance of an attorney, hereby state and allege
as follows:

1. I live at _____,
(your street address: if confidential under Nebraska or Federal law, enter
county and state only and provide an alternative address for mailing of notice)
in _____.
(city, county, and state where you live)

2. My spouse's address is _____,
(spouse's street address)
in _____.
(city, county and state where spouse lives)
3. Either my spouse or I have lived in the state of Nebraska for more than one year prior to the filing of the Complaint, with the bona fide intention of making this state our permanent home.
4. At the time this action was filed, either my spouse or I was living in _____
County, Nebraska.
(county where complaint filed)
5. We were lawfully married on _____, in _____,
(date of marriage)
_____.
(city and state of marriage)
6. Neither my spouse nor I am a party to any other pending actions for divorce, separation, or dissolution of marriage in this state or in any other state.
7. My spouse is not a member of the Armed Forces of the United States or its allies.
8. My marriage is irretrievably broken.
9. No child or children were born to or adopted by my spouse or me and none are expected, or all of our children are age 19 or older.
10. During the course of the marriage, my spouse and I have accumulated certain items of property, which should be equitably divided between us.
11. My spouse and I have incurred certain debts and obligations during the marriage, and the liability for payment of these debts and obligations should be equitably divided between us.
12. I wish my former name, _____,
(former or maiden name, including first, middle and last names)
to be restored to me.
13. I want this dissolution of marriage proceeding heard by a district court judge.

14. Check the box that applies:

☐ There are no existing restraining orders, protection orders, or criminal no-contact orders regarding either party.

OR

☐ There are one or more existing restraining orders, protection orders, or criminal no-contact orders regarding one or more of the parties. Details are as follows:

(a) Type of order: ☐ restraining; ☐ protection;
☐ criminal no-contact.

(b) Name of court, case number, and date of order for each order:

(name of court, case number and date of each order)

WHEREFORE, I request the court:

A. Dissolve my marriage.

B. Equitably divide the property and debts between my spouse and me.

C. Restore to me my former name of _____.
(former or maiden name, including first, middle and last names)

D. Grant any further relief that may be just.

Signature: _____ Date: _____

Printed Name: _____
(of defendant)

Street Address/P.O. Box: _____

City/State/ZIP Code: _____

Telephone Number: _____

*Email address: _____

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*[Nebraska Supreme Court Rule § 2-208](#) requires individuals who are not attorneys and representing themselves to provide their email address. The court will use the email address to send notices from the court about this case **except** for items that require another type of service as directed by statute or Nebraska Supreme Court Rule.

If you no longer have email capability or if your email or other contact information changes, you must complete a [Change of Contact Information Form](#).

☐ By checking this box, I am letting the court know that I do not have the ability to receive emails. The reason I cannot receive email is: _____

CERTIFICATE OF SERVICE

I hereby certify that on _____, a true copy of the
(date)
foregoing Answer and Counterclaim for Dissolution of Marriage was sent by
first-class mail, postage prepaid, to my spouse at _____

(spouse's address, including street address, city, state, and ZIP code)

(your name)